

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

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MICHAEL PRATT,

Plaintiff

- against -

**THE CITY OF NEW YORK,
POLICE OFFICER KEEGAN (SHIELD# 11090)
POLICE OFFICER ANTHONY PORCELLI
(SHIELD #29986)**

Defendant.

-----X

Index No. _____
Purchased _____
Plaintiff designates Kings
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 20, 2024

MARTINDALE & ASSOCIATES, PLLC
By: Conway C. Martindale II
Attorneys for Plaintiff
295 Madison Avenue, 12th Floor
New York, New York 10017
(212)405-2233

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

POLICE OFFICER CHRISTOPHER KEEGAN (SHIELD# 11090)

67th Precinct
2820 Snyder Avenue
Brooklyn, NY 11226

POLICE OFFICER ANTHONY PORCELLI (SHIELD #29986)

67th Precinct
2820 Snyder Avenue
Brooklyn, NY 11226

**SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY**

=====X

MICHAEL PRATT

Plaintiff,

Index No.

Verified Complaint

- against -

**THE CITY OF NEW YORK,
POLICE OFFICER KEEGAN (SHIELD# 11090)
POLICE OFFICER ANTHONY PORCELLI
(SHIELD #29986)**

Defendant.

=====X

Plaintiff MICHAEL PRATT, by his attorneys MARTINDALE & ASSOCIATES, PLLC, by CONWAY C. MARTINDALE II, principal, complaining of the Defendant, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times relevant herein, Defendant THE CITY OF NEW YORK (hereinafter “CITY”), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief, all New York Police Department (hereinafter “NYPD”) officers mentioned herein, including Police Officer Christopher Keegan (hereinafter “P.O. KEEGAN”) and Police Officer Anthony Porcelli (hereinafter “P.O. PORCELLI”) were, at the time of the occurrence, police officers of Defendant CITY, and at all times herein were acting in such capacity as the agents, servants, and employees of the defendant CITY.

3. At all times relevant herein, Plaintiff Michael Pratt (hereinafter “PRATT”) is a citizen of the United States and a resident of Bronx County in the City and State of New York.

PROCEDURAL POSTURE

4. Within 90 days after the incident, which occurred at approximately 6:00pm on August 12, 2023, in front of Brookdale Hospital, Brooklyn, New York, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon the Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
5. At least thirty days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety days after the happening of the event upon which the claims are based.
6. A 50-H hearing has been held.
7. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FACTS

8. Paragraphs 1-7 are incorporated by reference as fully set forth herein.

9. On August 12, 2023 at approximately 6:00pm, PRATT, along with his friend Ms. Shabana Shahabuddin was visiting his ailing mother, who had recently suffered a stroke, inside of Brookdale Hospital in Kings County.
10. Due to the inadequate medical care of his mother, PRATT began complaining to the hospital staff.
11. As opposed to rectifying the inadequacy of the medical care, the hospital staff called the hospital security on PRATT.
12. As the hospital security arrived, PRATT voiced his displeasure of the way his mother was being treated.
13. After a brief verbal exchange, PRATT and Shabana Shahabuddin attempted to exit the hospital.
14. PRATT was able to leave, but security kept Shabana Shahabuddin from leaving.
15. After realizing Shabana Shahabuddin was held back by security, PRATT circled back and demanded to know why Shabana Shahabuddin was being held.
16. PRATT eventually leaves the hospital again to go towards the vehicle he had arrived in.
17. Upon walking towards the vehicle, P.O. KEEGAN and P.O. PORCELLI approached PRATT.
18. Not wanting to have a confrontation, PRATT attempted to walk away from P.O. KEEGAN and P.O. PORCELLI.
19. P.O. KEEGAN and P.O. PORCELLI aggressively approached PRATT and attempted to grab him.

20. Having done nothing illegal, PRATT pulled away from P.O. KEEGAN and P.O.

PORCELLI and demanded to know why he was being accosted.

21. As opposed to explaining why he was being detained, P.O. KEEGAN and P.O.

PORCELLI grabbed PRATT's person, pulling his arms back in an unnatural position, while attempting to trip him down to the ground.

22. Never stating that PRATT was under arrest, P.O. KEEGAN and P.O. PORCELLI

continued trying to drag PRATT down to the ground, while PRATT was trying to ascertain why he was being physically grabbed by the officers.

23. Briefly after P.O. KEEGAN and P.O. PORCELLI initially grabbed PRATT, P.O.

PORCELLI pulled out a taser and tased PRATT on his right side.

24. Not getting the desired result of PRATT collapsing to the ground, P.O.

PORCELLI tased PRATT again, causing his body to go limp from the pain.

25. Once handcuffed, PRATT was placed in a police RMP vehicle with the windows closed.

26. Considering it was August, the temperature inside the car quickly became

unbearable and PRATT had extreme difficulty breathing.

27. After several minutes of complaining about the conditions, the window was

finally lowered to allow PRATT to breathe.

28. PRATT was taken to a local Kings County precinct and booked on misdemeanor charges.

29. PRATT was eventually taken to Kings County central booking where he was

arraigned on Obstruction of Governmental Administration, Resisting Arrest and Menacing charges.

30. He was released on his own recognizance.
31. PRATT came back and forth to court approximately two times until the final court appearance occurring on December 5, 2023.
32. On December 5, 2023, the above referenced charges were DISMISSED.
33. During the altercation with P.O. KEEGAN and P.O. PORCELLI, PRATT sustained numerous physical injuries, including but not limited to, a torn labrum in his left and right shoulders, bruising to the area he was tased and overall aches and pains which, in addition to physical pain, permanently impacted PRATT's ability to work.
34. The aforementioned injuries led to the need of physical therapy.
35. In addition to the physical injuries sustained by PRATT, he also suffered psychological and emotional trauma, including but not limited to:
- a) Post Traumatic Stress Disorder
 - b) Depression
 - c) Anxiety Disorder
 - d) Trust Issues
 - e) Fear of Re-Experiencing Trauma
 - f) Difficulty Concentrating
 - g) Sleep Disturbances
 - h) Social withdrawal
 - i) Irritability
 - j) Strained relationships
 - k) Chronic Stress

l) Identity and Self-Esteem Issues

FIRST CAUSE OF ACTION: FALSE ARREST

36. Paragraphs 8-35 are incorporated by reference as fully set forth herein

37. P.O. KEEGAN and P.O. PORCELLI arrested PRATT intentionally, and PRATT at all times was aware he was being arrested and did not consent to being arrested.

38. As a result of being arrested by P.O. KEEGAN, P.O. PORCELLI, PRATT suffered psychological injuries, including emotional distress.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

39. Paragraphs 1-38 are incorporated by reference as though fully set forth herein.

40. The officers who arrested PRATT, as described in paragraphs 9-35, intended to confine him. PRATT was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

41. Paragraphs 1-40 are incorporated by reference as though fully set forth herein.

42. In arresting Plaintiff as described in paragraphs 9-35, the arresting NYPD officers, including P.O. KEEGAN and P.O. PORCELLI were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.
43. In arresting PRATT as described in paragraphs 9-35, the arresting NYPD officers, including P.O. KEEGAN and P.O. PORCELLI sought either a detriment to PRATT or a collateral advantage to themselves that is outside of the legitimate ends of making an arrest.
44. As a result of defendants' abuse of process, PRATT sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

45. Paragraphs 1-44 are incorporated by reference as though fully set forth herein.
46. In arresting PRATT as described in paragraphs 9-35, the arresting NYPD officers, including P.O. KEEGAN and P.O. PORCELLI acted with malice and without probable cause.
47. As a result of being maliciously prosecuted by the arresting NYPD officers, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FIFTH CAUSE OF ACTION: ASSAULT

48. Paragraphs 1-47 are incorporated by reference as though fully set forth herein.

49. Immediately before the arresting NYPD officers arrested PRATT as described in paragraphs 9-35, the officers, including P.O. KEEGAN and P.O. PORCELLI intentionally placed PRATT in apprehension of imminent harmful or offensive contact without his consent.

SIXTH CAUSE OF ACTION: BATTERY

50. Paragraphs 1-49 are incorporated by reference as though fully set forth herein.

51. The NYPD officers who arrested PRATT, as described in paragraphs 9-35, wrongfully touched, grabbed, handcuffed and seized PRATT in an excessive manner, subjecting PRATT to harmful and offensive bodily contact. The arresting officers lacked legal cause to grab, handcuff, seize or touch PRATT, nor did he consent to the illegal touching, nor was the touching privileged by law.

SEVENTH CAUSE OF ACTION: 42 U.S.C. 1983 and 1988

52. Paragraphs 1-51 are incorporated by reference as though fully set forth herein.

53. Upon information and belief, the officers who illegally arrested and battered PRATT, including P.O. KEEGAN and P.O. PORCELLI, were at all times relevant duly appointed and acting officers of the City of New York Police Department.

54. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

55. Plaintiff is and at all times relevant herein a citizen of the United States and resident of Bronx County in the State of New York. He brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
56. The Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.
57. On or about August 12, 2023, as described in paragraphs 9-35, armed officers of the NYPD, including P.O. KEEGAN and P.O. PORCELLI, while effectuating the seizure of the Plaintiff, searched, seized, assaulted, and battered Plaintiff, and grabbed the Plaintiff's person, without a court authorized arrest or search warrant. The officers seized the person of the Plaintiffs during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested and maliciously prosecuted without the police officers possessing probable cause to do so.
58. The above actions of the arresting officers caused the Plaintiff to be deprived of the following rights under the United States Constitution:
- (a) Freedom from assault to his person,
 - (b) Freedom from battery to his person,
 - (c) Freedom from illegal search and seizure,
 - (d) Freedom from false arrest,
 - (e) Freedom from malicious prosecution,
 - (f) Freedom from the use of excessive force during the arrest process.
59. The arresting officers subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate

indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.

60. The direct and proximate result of the officers' acts are that the Plaintiff has suffered severe and permanent physical and psychological injuries. Plaintiff was forced to endure pain and suffering to his detriment.

EIGHTH CAUSE OF ACTION: NEGLIGENCE

61. Paragraphs 1-60 are incorporated by reference as though fully set forth herein.

62. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process, malicious prosecution, assault, and battery were caused solely by the negligence of Defendant CITY, its agents, servants and/or employees.

63. As a result of the negligence by Defendant CITY, the Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

NINTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

64. Paragraphs 1-63 are incorporated by reference as though fully set forth herein.

65. Defendant CITY has grossly failed to train and properly supervise its police officers regarding the law of arrest, search and seizure, particularly when its police officers lack a valid arrest or search warrant and where an individual, such as the Plaintiff in the instant case, has not committed a crime and has not resisted arrest.

66. Defendant CITY was negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or probable cause. Defendant CITY was further negligent by failing to implement a policy within its police department instructing police officers to use reasonable force when an individual resists arrest and to not use force when an individual does not resist arrest.

67. Defendant CITY is negligent due to its failure to implement a policy with its police department or actively enforce the law, if any of the following is lacking:

- (a) Probable cause must be present before individuals such as the Plaintiff herein can be arrested.
- (b) Force cannot be used against an individual who does not physically resist arrest.

68. The foregoing acts, omissions and systematic failures are customs and policies of Defendant CITY which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize, and assault and batter Plaintiff.

TENTH CAUSE OF ACTION: NEGLIGENT HIRING

69. Paragraphs 1-69 are incorporated by reference as though fully set forth herein.

70. Defendant CITY was negligent because prior to and at the time of the acts complained of herein, due to the prior history of the police officers mentioned herein, the CITY knew or should have known of the bad disposition of said police

officers or had knowledge of facts that would have put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals, conduct illegal searches, or use excessive force during the arrest process.

WHEREFORE, Plaintiff MICHAEL PRATT demands judgment against the Defendant in the sum of \$35,000,000 in compensatory damages and \$5,000,000.00 in punitive damages, together with the costs and disbursements of this action as well as any other additional relief this Court deems just and proper.

Dated: New York, New York

September 20, 2024

Yours, etc.,

MARTINDALE & ASSOCIATES, PLLC

By: Conway C. Martindale II
Attorneys for Plaintiff
295 Madison Avenue, 12th Floor
New York, NY 10017
(212)405-2233

VERIFICATION

The undersigned, the Plaintiff in this action, affirms under the penalties of perjury:

That deponent is the plaintiff in the within action; that deponent has read the foregoing **VERIFIED SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which his attorney has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
September 20, 2024

DocuSigned by:
Michael Pratt
B780F263CBFF492
MICHAEL PRATT

Subscribed and sworn to before me, this __th day of September 2024

Notary Public

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

Index No:

MICHAEL PRATT,

Plaintiff,

-against-

**THE CITY OF NEW YORK
POLICE OFFICER KEEGAN (SHIELD# 11090)
POLICE OFFICER ANTHONY PORCELLI
(SHIELD #29986)**

Defendant.

SUMMONS & COMPLAINT

**Martindale & Associates, PLLC
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**TO: CORPORATION COUNSEL OF THE
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